

Tentative Rulings
June 10, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Guy v. Loma Linda Univ. Med. Cntr., et al*, Case No. CIVSB2607407

Def. Loma Linda's Demurrer

6/10/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the matter so that movant may satisfy the meet-and-confer requirements.

Prior to a demurrer, a party is required meet and confer in person or by telephone or by video conference with the party who filed the pleading for purposes of "determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41(a).)

Here, the supporting declaration does not confirm compliance with the meet-and-confer requirements. (See Cannon Decl.) Rather, the declaration simply unilaterally asserts that the attorney "met and conferred." (Cannon Decl., ¶12.) No statements were provided setting forth the actions that constitute the attempt. Thus, the Court cannot confirm whether the process was in person, by telephone, or by video, as required by Code.

Thus, the Court would continue the matter to allow a supplemental declaration expressly showing compliance. Defendant will file a supplemental declaration at least ten court days before the next hearing.

14. *Castro's Cleaning Servs. Co., Inc., v Ryan Peacock, Inc., et al*, Case No. CIVSB2505507

Motion to Compel Responses from Ryan Peacock, Inc. to Special Interrogatories, Set One
6/10/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** Plaintiff's unopposed motion to compel responses from Defendant Ryan Peacock to Special Interrogatories, Set One (SROG1). The Court would further **GRANT** sanctions in the amount of \$1,141.00. Both responses and sanctions are due within thirty days.

Relevant here, Plaintiff served SROG1 on Defendant Ryan Peacock on September 29, 2025. (Schiller Decl., ¶12.) An extension on time to respond was requested and granted, and, pursuant to the extension, responses were due no later than January 6, 2026. (Schiller Decl., ¶13.) No responses have been provided; thus, the motion became necessary.
